

TENTATIVE RULING(S) FOR August 13, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2523396

Vasquez v. Green

TENTATIVE RULING(S):

I. Background

Plaintiff Ivan N. Vasquez ("Plaintiff") sues Defendant Circle Green, Inc. dba Beneficial Ag Services ("Defendant") for general negligence and premises liability arising out of an incident on October 19, 2023 at 8271 Chino Ave, Ontario, California (the "Premises"). Plaintiff alleges that while working in the course and scope of his employment with Custom Lumber Designs to haul and unload gravel/mulch, he was injured when material was dumped from Defendant's loader while he was rolling/unwinding/opening a tarp on an 18-wheeler trailer.

Defendant moves for summary judgment.

II. Request for Judicial Notice

Defendant requests judicial notice of six items: (1) Defendant's Answer; (2) Plaintiff's verified responses to requests for admissions; (3) Plaintiff's verified responses to special interrogatories; (4) Plaintiff's verified responses to requests for production; (5) Plaintiff's workers' compensation claim and compromise and release; and (6) Plaintiff's qualified medical examination report.

The Court DENIES Defendant's request. The Court need not judicially notice its own records.

Further, discovery responses are not a proper basis for judicial notice and are instead addressed through the evidentiary rules governing admissibility at summary judgment.

III. Evidentiary Objections

Plaintiff objects to certain testimony in the declaration of Defendant's site manager, Jackie Kuhlman.

The Court RULES as follows:

1. Kuhlman Decl. ¶ 25 — Overruled
2. Kuhlman Decl. ¶ 27 — Sustained (improper lay opinion)
3. Kuhlman Decl. ¶ 30 — Overruled
4. Kuhlman Decl. ¶ 31 — Overruled
5. Kuhlman Decl. ¶ 32 — Overruled
6. Kuhlman Decl. ¶ 33 — Overruled

IV. Legal Standards

A negligence-based claim requires proof of duty, breach, causation, and damages. Premises liability is treated under the same negligence framework.

Where the injured worker is employed by an independent contractor, the hirer's tort liability is governed by the doctrine established in *Privette v. Superior Court* and its subsequent development. Under *Privette*, an independent contractor's employee generally may not recover tort damages from the hirer for work-related injuries because responsibility for workplace safety is presumed to be delegated to the contractor.

However, *Privette* recognizes exceptions, including where the hirer exercises retained control in a manner that affirmatively contributes to the injury (*Hooker*), as further refined by *Sandoval* to

require: (1) retained control actually exercised over the contracted work's manner of performance, and (2) affirmative contribution to the injury through that control, including inducement of the injury-causing conduct rather than merely failing to prevent it.

V. Discussion

A. Privette generally applies

The material facts for purposes of this motion show that Plaintiff was employed by Custom Lumber Designs at the time of the incident, and Custom Lumber Designs was an independent contractor hired by Defendant. Defendant argues that, as a result, Plaintiff's claims are barred by Privette unless an exception applies.

The Court agrees that Privette would bar the claims unless Plaintiff establishes a recognized exception.

B. Hooker/Sandoval exception—retained control actually exercised with affirmative contribution
Plaintiff contends that the exception applies because Defendant's loader operator was in actual control of the loading process that caused the injury. Defendant, through Kuhlman's declaration, asserts that Defendant did not require or permit the relevant tarp handling in the loading area and did not control how drivers operated their trucks or tarp systems; Defendant also maintains that loading could be stopped or delayed and that Defendant did not provide defective equipment.

In evaluating summary judgment, the Court must view the evidence in the light most favorable to the nonmoving party. Here, Plaintiff points to deposition testimony describing that:

- Plaintiff gave hand signals to the loader operator to hold and to indicate the opening status of the tarp;
- the loader operator acknowledged the signals; and
- the loader dumped approximately 5,000 pounds of material before Plaintiff could signal loading to begin, while the tarp was only partially opened.

Plaintiff further explains the mechanism of injury: the tarp was struck and pulled toward the trailer bed while Plaintiff was holding the tarp bar, throwing Plaintiff approximately eight feet and causing injuries to his knees and lower back.

On this record, the Court finds a genuine dispute as to whether Defendant's agent/operator actually exercised retained control over aspects of the manner of the work—specifically the timing and execution of the loading conduct that directly preceded the injury—and whether that control affirmatively contributed to the injury under Sandoval. The Court cannot resolve these disputes at summary judgment.

Defendant's arguments about the lack of control over tarp/un-tarping and about the general ability to stop loading do not eliminate the triable issues created by Plaintiff's evidence regarding the interaction between Plaintiff's signals and the operator's loading actions, and the causal sequence between the loading conduct and the injury.

C. Summary judgment is therefore inappropriate

Because Plaintiff has presented evidence sufficient to raise a triable issue of material fact regarding the Hooker/Sandoval retained-control exception to Privette, Defendant has not shown that it is entitled to judgment as a matter of law.

VI. Conclusion / Order

For the reasons stated above, the Court ORDERS as follows:

1. Defendant's Request for Judicial Notice Nos. 1–6 is DENIED.
2. Plaintiff's evidentiary objections are OVERRULED in part and SUSTAINED in part, as follows: Kuhlman Decl. ¶ 25 overruled; ¶ 27 sustained; ¶¶ 30–33 overruled.
3. Defendant's Motion for Summary Judgment is DENIED.

There is a triable issue of material fact whether the Privette doctrine is inapplicable under the retained-control exception under Hooker, as refined by Sandoval.

TENTATIVE RULING(S) FOR August 14, 2026

Department S37 – Judge Winston Keh

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CIVSB2506895

Tinoco v. Lyft

TENTATIVE RULING(S):

Before the Court is Defendant Lyft's motion to compel Plaintiff to arbitrate her claims and stay the proceedings as to Lyft. Plaintiff opposes. Lyft replies.

Legal Standard

California law favors enforcement of valid arbitration agreements, and doubts are resolved against the party opposing arbitration. The Federal Arbitration Act likewise authorizes enforcement of arbitration clauses, absent legal or equitable grounds for revocation of the contract. When a petition to compel arbitration is filed with prima facie evidence of a written arbitration agreement, the Court must first determine whether an agreement exists. The moving

party bears the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. If the opposing party raises a defense to enforcement, that party bears the burden of producing evidence establishing the defense by a preponderance of the evidence. A stay may be entered pending arbitration.

Analysis

1. Does the FAA Apply?

Yes. The parties' arbitration agreement expressly provides it is governed by the Federal Arbitration Act, and Plaintiff does not argue otherwise. Accordingly, the FAA applies.

2. Was a Contract to Arbitrate Formed?

Yes. Under California contract principles, the Court first determines whether the parties entered into a binding agreement to arbitrate, and the party seeking arbitration bears the burden of proving the arbitration agreement by a preponderance of the evidence. Lyft has submitted a copy of the Lyft Terms of Service containing the arbitration provision in effect at the time of the accident. Lyft also submits evidence that Plaintiff electronically agreed to the Terms of Service. Once Lyft produced the agreement, Plaintiff was required to come forward with evidence creating a factual dispute as to the agreement's existence or authenticity (for example, by disputing authenticity or offer/acceptance in a meaningful evidentiary way).

Plaintiff does not provide evidence disputing that she agreed to the Terms. Instead, Plaintiff argues Lyft failed to prove Plaintiff received reasonably conspicuous notice of the arbitration clause. On this record, Plaintiff has not met her evidentiary burden to create a factual dispute material to contract formation or the existence of the arbitration agreement. Lyft has therefore shown, by a preponderance of the evidence, that a contract was formed.

3. Who Decides Arbitrability and Enforceability?

Generally, courts decide enforceability and arbitrability issues, but the statutes and controlling authority recognize that the parties may agree who decides arbitrability. Where there is a clear and unmistakable delegation, challenges directed to the arbitration agreement as a whole are for the arbitrator; however, a party may challenge the delegation clause itself using generally applicable contract defenses, but the challenge must be specific to the delegation provision.

Here, the arbitration agreement includes a delegation clause providing that disputes concerning arbitrability—including scope, applicability, enforceability, revocability, or validity of the arbitration agreement—shall be decided by the arbitrator. That is a clear delegation of arbitrability/enforceability questions to the arbitrator.

Plaintiff's opposition does not establish a specific contract defense to the delegation clause. Plaintiff's general assertion that delegation clauses are inherently unconscionable because arbitrators may decide their own authority is unpersuasive and does not address the delegation clause as required by the governing standard. Plaintiff has not shown that the delegation provision in this agreement is specifically unconscionable or otherwise invalid under a defense targeted at the delegation clause.

Accordingly, the Court will enforce the delegation clause, and the arbitrator will decide the remaining issues raised by Plaintiff—including any unconscionability challenges to the arbitration provision, public policy arguments, and Code of Civil Procedure section 1281.2 issues.

Conclusion/Order

For the foregoing reasons, the Court GRANTS Defendant Lyft's motion to compel arbitration in its entirety. The Court further STAYS the proceedings against Lyft pending completion of arbitration. This ruling does not apply to Defendants Melvin Espinoza Torrez and Richard Paul Guinan, Jr. as they do not appear to be parties to the arbitration agreement.